

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: January 29, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT’S MOTION TO FURTHER EXTEND SCHEDULING DEADLINES

This matter came on for consideration of: 1) Complainant’s Motion for Further Extension of Scheduling Deadlines filed January 26, 2026 (“Motion”) (Dkt. 44); and 2) Respondent’s Reply to Complainant’s Motion for Further Extension of Scheduling Deadlines filed January 28, 2026 (“Response”) (Dkt. 45). By orders dated April 23, 2025, June 23, 2025, July 23, 2025, and November 18, 2025, the scheduling order was previously extended to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding and to facilitate potential settlement discussions. (Dkt. 27, 34, 36, 40.) For the reasons set forth below, the Motion is **GRANTED** and the scheduling order is extended as set forth herein.

Complainant seeks an extension of the current deadlines on the ground that its counsel became suddenly ill on January 17, 2026, and was ultimately diagnosed with a serious illness requiring multiple doctor visits, an emergency room visit, and prescription medicine with side effects that have prevented counsel from working on this matter and will continue to do so for several days. Complainant seeks a two-week extension of the current February 2, 2026, discovery deadline to allow the parties to reschedule in early February the depositions of the remaining four witnesses now scheduled for the end of January.

Complainant asserts that Respondent consents to granting the relief requested with respect to three of the four remaining witnesses but opposes rescheduling the deposition of Respondent’s main witness currently scheduled on January 28, 2026. Complainant asserts that counsel’s medical condition renders him unable to adequately prepare to depose Respondent’s main witness on the date currently scheduled, but that Respondent does not agree to reschedule the deposition of this witness because “Respondent had already flown an in-house attorney to France to prepare and assist the witness and that the witness had a busy schedule.” (Motion at 3-4.)

Because there may be a lapse in federal appropriations after January 30, 2026, that would impact my ability to enter a timely order if Respondent were accorded the generally applicable seven-day response deadline, the parties were advised by email on January 28, 2026, that a

response to the motion should be filed by 6 pm EST on January 28, 2026. In accordance with this instruction, Respondent filed a timely response to the motion.

Respondent states in its response that it has no objection in principle to extending the scheduling deadlines as requested by Complainant but that its initial reluctance to reschedule the deposition of Respondent's main witness was based solely on the availability of the witness, who is "a senior executive with global responsibilities whose schedule has very little flexibility," stating that "the next dates on which the witness will be available are in mid-March." For this reason, Respondent requests that if an extension of the scheduling deadlines is to be granted that the witness's availability be taken into account. (Response at 1.)

Respondent further states that counsel for the parties conferred on January 27 and agreed: 1) that three of the four depositions can likely be completed during the week of February 9 subject to witness availability; and 2) Respondent's primary witness can be completed in March if that is the next date on which the witness is available. (Response at 2.)

The parties have established that additional time is necessary to complete depositions in advance of briefing, and that witness availability must be taken into consideration with respect to establishing new deadlines. I find that Complainant's counsel's serious medical illness resulting in hospitalization and a treatment regimen with side effects that prevent him from working on this matter constitutes good cause to justify an extension of the current schedule. I also find that Complainant's counsel requires adequate time to prepare to depose Respondent's main witness, that his medical condition prevents him from doing so on the date scheduled, and that conducting the deposition on the currently scheduled date would likely prejudice Complainant in this regard. At the same time, I find that Respondent has demonstrated good cause for extending the schedule beyond the two weeks requested by Complainant on the ground that Respondent's main witness is a senior executive with global responsibilities that render him unavailable until mid-March.

Accordingly, I find that an approximately 60 day extension of the discovery and briefing schedule is reasonable under the circumstances despite that it will necessitate an extension of the deadline to issue an initial decision, which is currently scheduled for May 18, 2026. (Dkt. 41.) Good cause having been stated, it is hereby ordered that the Motion (Dkt. 44) is **GRANTED** subject to the request for accommodation of witness availability as requested in the Response (Dkt. 45). Accordingly, the parties are hereby **ORDERED** to follow this schedule:

March 27, 2026	Complete depositions of fact witnesses
March 27, 2026	Complete expert depositions
March 27, 2026	Close of discovery
April 27, 2026	Complainant's initial brief, proposed findings of fact, and appendix
May 27, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 8, 2026	Complainant's reply and responses to proposed findings of fact

MARY A. HERVEY -S_S
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Mary Apostolakos Hervey
Administrative Law Judge